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Proposed Jury Instructions and Objections

Joint submission with disputed language identified

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

Civil Action No. SYN-WDNC-24-CV-0520

Filed September 26, 2025

The parties submit proposed final instructions for the October trial. Agreed passages may be edited by the Court for clarity. Each objection states the requesting party's position without becoming evidence and without suggesting the Court has already ruled.

The proposed charge separates contract performance, causation, gross damages, and mitigation. Blue Ember bears the burden on its claim and damage categories. Granite Heron bears the burden on the affirmative contention that Blue Ember unreasonably failed to reduce loss. The verdict form should identify findings separately so one answer does not obscure another.

The jury should not treat a specification failure as automatic proof of every claimed consequence, nor should it treat retained activity in tested samples as automatic proof that a validation lot satisfied its intended use. Similarly, the existence of alternative capacity does not itself decide reasonableness, and the absence of a guarantee does not itself make an alternative unreasonable.

Instruction 1 — role of jury and burden of proof

Members of the jury, you must decide the facts from admitted evidence and apply the law in the Court's instructions. A lawyer's question, argument, opening, or closing is not evidence. An objection or ruling should not influence your view of either party. The Court expresses no opinion about the result.

A party with the burden on an issue must prove it by the greater weight of the evidence. This means evidence that persuades you the proposition is more likely true than not true. The number of witnesses or exhibits does not control; consider reliability, basis of knowledge, consistency, and all surrounding circumstances.

Blue Ember bears this burden on formation, performance, breach, causation, and each requested damage component. Granite Heron bears it on failure to mitigate and the amount of loss reasonably avoidable. A burden does not shift merely because particular information is held by another person; you may consider the evidence and reasonable inferences under all instructions.

Both parties agree to the substance. Granite Heron requests a sentence emphasizing that Blue Ember retains the burden on gross damages even if the carrier presents a mitigation alternative. Blue Ember does not object if the affirmative-defense burden remains equally clear.

Instruction 2 — integrated contract and performance

The parties agree that enforceable written agreements governed the shipment. You must consider the master agreement together with the quality agreement, statement of work, purchase order, release specification, and rate confirmation as directed by the Court. The more specific shipment and quality terms govern their assigned subjects.

Blue Ember was required to tender the identified material with accurate handling instructions and perform its obligations. Granite Heron was required to provide the accepted frozen transportation, maintain custody, monitor the shipment, respond to an exception, preserve records, and deliver according to the integrated writings.

The Court will resolve any purely legal ambiguity. You decide whether the parties performed the factual duties described and whether a failure was material. Materiality turns on whether the failure concerned an important promised performance rather than a trivial departure that did not affect the exchange.

Granite Heron asks the Court to instruct that it did not guarantee scientific success or regulatory approval. Blue Ember agrees if the charge also states that lack of such a guarantee does not eliminate an express continuous-temperature obligation. The parties request neutral language preserving both propositions.

Instruction 3 — breach and environmental deviation

To find breach, you must determine that Granite Heron failed to perform a material contractual duty. The parties have stipulated to the CTX-9 time-temperature curve and to operational facts. You must decide the legal and factual significance of those matters under the contract instruction.

A recorded condition outside the authorized band may establish failure of an environmental requirement. It does not by itself determine the amount of damages or whether every later decision was caused by that failure. Conversely, later return to the permitted range does not erase an earlier interval or convert it into compliance.

Blue Ember contends the carrier's failed power transition, missed response path, and delayed notice violated central promises. Granite Heron asks that the jury distinguish an admitted deviation from the disputed consequence and from the scope of legal responsibility. Each party may argue the evidence, but neither may invite punishment for conduct outside the compensatory contract claim.

Blue Ember objects to any instruction requiring proof of intentional or reckless conduct because no such element belongs to its claim. Granite Heron agrees that intent is unnecessary and requests a clear statement that operational error alone does not establish all remaining elements.

Instruction 4 — causation and foreseeability

Blue Ember must prove that a material breach was a cause of the loss for which it seeks recovery. A cause is one that, in a natural and continuous sequence, produced the claimed consequence and without which that consequence would not have occurred, subject to the Court's full legal formulation. There may be more than one cause.

You should consider the shipment's identified validation purpose, the release specification, logger evidence, testing, quality disposition, alternative uses, replacement actions, and program schedule. A business decision made after a breach may be a reasonable consequence, an independent cause, or part of mitigation depending on the facts.

Foreseeable loss is a consequence that the parties reasonably could have contemplated when contracting in light of the information communicated and the transaction's nature. Foreseeability does not require prediction of the exact dollar amount. Remote or highly speculative results are not compensable.

Granite Heron requests emphasis that Blue Ember's independent quality and facility decisions must be evaluated. Blue Ember objects to labeling those decisions superseding causes as a matter of law and requests that the jury assess reasonableness and sequence from the evidence. The Court should avoid resolving that factual dispute through terminology alone.

Instruction 5 — compensatory damages

If Blue Ember proves breach and causation, award the amount that reasonably compensates proven loss without placing Blue Ember in a better position than proper performance would have produced. Damages must have a reasonable basis. Mathematical certainty is unnecessary, but speculation or guesswork is insufficient.

Consider the categories separately. The claimed original-lot component concerns cost embodied before the transport event. The replacement component concerns incremental expense incurred afterward. The delay component concerns a bounded time-related economic effect. Do not count one invoice, activity, or consequence in more than one category.

You may consider contemporaneous ledgers, invoices, budgets, schedules, forecasts, declared value, expert methods, credits, and contrary evidence. A declared value may inform scale or a contractual limit but does not automatically establish actual loss. A forecast may be probative if grounded and adjusted for uncertainty; its existence does not guarantee the predicted event.

Blue Ember requests a gross-damages answer before mitigation. Granite Heron agrees that this order clarifies the arithmetic, while reserving its challenges to each component and any legal limitation the Court applies after the verdict.

Instruction 6 — delay and development uncertainty

A development-stage program may have economic value even though later success is uncertain. You must decide whether Blue Ember's claimed delay was proved with reasonable certainty and was a foreseeable consequence of the breach. Consider whether the model uses sources created before the event, confines the period, subtracts avoided variable cost, and accounts for unrelated technical and business risk.

Do not award indefinite future sales, enterprise value, reputation, attorney expense, or another category not submitted. Do not reduce a supported amount to zero merely because no forecast is guaranteed. Instead, evaluate the assumptions and choose only an amount supported by the evidence.

Brooks presents a 2 million dollar bounded figure. Park conditionally uses that structure for mitigation but Granite Heron otherwise disputes the category. Expert agreement on a formula does not require acceptance of its inputs. You may accept or reject an opinion in whole or part after considering qualifications, facts, method, and consistency.

Granite Heron requests language barring remote approval-dependent profits. Blue Ember agrees that remote amounts are excluded but objects to characterizing its limited collaboration and milestone model as commercial sales. The charge should describe the actual claimed category neutrally.

Instruction 7 — reasonable mitigation

An injured party must take reasonable steps to reduce loss after learning of a breach. Granite Heron must prove that a practicable alternative was available, that Blue Ember acted unreasonably in declining or failing to pursue it, and the net amount of loss that reasonable action would have avoided.

Judge the decision using information available by the October 4 deadline, not solely later events. Consider Cobalt Finch's relevant capability, the genuine December slot, tasks remaining for BE-214, qualification and change-control needs, schedule, response time, cost, cancellation exposure, technical risk, and expected benefit. Reasonableness does not demand certainty or prohibit all risk. It also does not require unsafe conduct or abandonment of necessary quality controls.

Any reduction is net. Subtract reasonable incremental cost required to obtain the alternative from gross loss likely avoided. Do not deduct a hypothetical expense a second time or reduce unrelated original-lot value merely because an earlier replacement could shorten delay.

Blue Ember requests the words "reasonable under the circumstances." Granite Heron agrees but objects to language equating incomplete qualification with unavailability. Blue Ember objects to language treating physical capacity as conclusive. The proposed balanced formulation leaves those facts to the jury.

Instruction 8 — deliberation and verdict form

Select a foreperson and deliberate with all jurors. Discuss the evidence respectfully, do not surrender an honest judgment merely to reach agreement, and return only unanimous answers. Do not research the fictional names, locations, scientific terms, rules, or docket. Decide solely from admitted evidence and the Court's law.

The proposed verdict form asks separately whether a contract existed, whether Granite Heron materially breached it, whether breach caused compensable loss, the amount of gross damages by category, whether Granite Heron proved unreasonable failure to mitigate, the net deduction, and the resulting total. Follow the form's directions and do not answer a later question when a prior answer makes it unnecessary.

Your gross-damages answer must come before the mitigation answer. If you find a mitigation deduction, state a single net figure after considering reasonable incremental cost. The clerk will perform or verify only arithmetic directed by the form; the jury remains responsible for its factual amounts.

Neither a party's requested figure nor counsel's calculation is evidence. The final judgment is the Court's responsibility after receiving your verdict and resolving any remaining legal issue.

Objections, alternatives, and certification

Blue Ember preserves its objections to any charge implying that Cobalt Finch was already approved for BE-214, that a development forecast is categorically unrecoverable, or that a quality-specification failure must be accompanied by universal inactivity. Granite Heron preserves objections to any charge that makes scientific disposition conclusive, understates uncertainty, or requires a guaranteed substitute.

Both parties request separate gross and mitigation answers. Blue Ember proposes that original-lot and replacement amounts be separately stated; Granite Heron proposes an additional separate delay line. The Court may combine compatible subparts if the final form still permits transparent computation and avoids compromise.

The parties will raise final objections at the charge conference before the jury retires. A requested instruction is not evidence and does not itself establish a procedural motion on another subject. Each side must state any later request independently on the record.

The Court may revise wording after hearing the admitted evidence, subject to timely and particular objections.

Filed September 26, 2025 by Maya Holt and Jonas Bell for Blue Ember and Eli Mercer and Tara Webb for Granite Heron. Counsel certify that disputed language is identified in good faith and that every person, entity, facility, product, dollar amount, and event in the submission is fictional.